WITHDRAWAL OF PRODUCTS FROM THE MARKET

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DOCUMENT HISTORY			
VERSION	CAUSES OF CHANGE	DATE of entry into force	REPLACE A (Code, Revision)
01	Initial edition	14/02/2024	N/A
02	Detailed description of the implementation of the locking/disabling of the software in case of need is included.	20/08/2024	PNT-008.01
03	Change in Spika's departments	02/06/2025	PNT-008.02

Content

1. Target 4
2. Outreach 4
3. Responsibilities and Departments concerned 4
4. Definitions and Acronyms 5
5. Procedure 5
5.1. Scope of the withdrawal process 5
5.2. Types of withdrawal 6
5.2.1. Urgent withdrawal 6
5.2.2. Non-urgent withdrawal 6
5.3. Notice to health authorities 6
5.4. Information needed to send the notice 6
5.5. Product blocking 7
5.6. Withdrawal/disqualification report and its effectiveness 8
5.7. Simulation 8
6. Distribution of the Procedure 9
7. Related documentation 9
8. Training 9

1. Target

The purpose of this procedure is to define the activities to be carried out to withdraw a product from the market by Spika Tech, hereinafter SPIKA, quickly and efficiently. This is done if there is real evidence that the product may constitute a danger to the safety of customers.

2. Outreach

The scope of the procedure is all products manufactured by SPIKA.

3. Responsibilities and Departments concerned

- The Management and the Responsible Technician are responsible for deciding whether to carry out the withdrawal processes.
- The Responsible Technician is responsible for:
  - Communicating with the authorities
  - Notify the distribution party of the blocking/immobilisation/inactivation/cancellation of access, etc., as the case may be, of the products concerned.
  - Monitor and develop the market recovery process.

The departments concerned are listed in the table below:

Department	Applies	
	Yes	No
Address	☒	☐
Environment	☒	☐
Quality Assurance	☒	☐

Systems and Cybersecurity	☒	☐
Research and Development	☒	☐
Marketing and Sales	☒	☐
Management	☒	☐

4. Definitions and Acronyms

- AEMPS: Spanish Agency for Medicines and Medicinal Products.
- N/A: not applicable

5. Procedure

All safety alerts received that may have a detrimental impact following the use of SPIKA products must be evaluated by the Management and the Responsible Technician. In addition, notifications of complaints that may be escalated through this procedure may be received.

If the final decision results in the product being blocked, withdrawn from the market, inaccessible, deactivated, etc., as the case may be, it shall be carried out as indicated in this procedure.

5.1. Scope of the withdrawal process

Once a decision has been taken to withdraw a product from the market and/or to disable a product, as appropriate, actions should be swift and effective, in order to prevent the spread of the risk to the health and protection of customers and to reduce as far as possible the consequences that may occur.

Withdrawals may be due to:

- A complaint or quality defect detected inside the company
- An external complaint about a quality defect (see SOP-007 Complaint Handling).

- Requirement of the relevant health authorities.

5.2. Types of withdrawal

5.2.1. Urgent withdrawal

Where there is a reasonable likelihood that the use of the product may cause irreparable damage to human health.

In this case, the main objective is to collect and/or disable ALL products that have gone out of use, including those that may have been sent to the public, using all necessary measures, including media publicity if necessary.

5.2.2. Non-urgent withdrawal

A situation where the use of the product may cause temporary adverse health effects that are reversible and where the likelihood of irreversible effects is remote.

In this case the primary objective is the immediate blocking and/or disabling of all elements of their destinations. Means of communication shall not be used except in specific high-risk cases.

5.3. Notice to health authorities

Once a decision has been taken to withdraw and/or ban a product or batch from the market, it is mandatory to inform the Health Authorities immediately.

The AEMPS or other health entities delegated to SPIKA will be notified by e-mail and the information provided will be used to assess the possible risks, with the Responsible Technician being in charge of making these communications.

5.4. Information needed to send the notice

Following the decision to withdraw a product from the market, it will be necessary to collect a series of information to be sent to the Health Authorities, which will generally be as follows:

- Product batch data (if physical product)
- Product batch number (if it is a physical product) or product version (if it is a software product)
- Reason for the decision
- Risk assessment
- Production data, including:
  - Number of total units produced (if it is a physical product) or number of licences sold (if it is a software product)
  - List of customers supplied
  - Name of customers and contact details: telephone, email, postal address, etc...
  - Date of distribution/activation of user licence
  - Delivery notes or documentation related to licence deliveries/activations.

5.5. Product blocking

It may block/disable products in whole or in part until the investigation into the reported complaint or defect has been resolved. The blocking/partial disqualification must be justified or if it has been possible to narrow down the defect. Preventive blocking/disqualification may also be carried out and will be lifted if the defect has been ruled out. The process of blocking/disabling the software to be carried out remotely if necessary is detailed below:

- Step 1: Knowing the version of the software to block/disable, Spika's IT staff will access the application database, where all available versions of the software are stored.
- Step 2: Once in the database and having identified the version to be blocked/disabled, disable it by changing the access parameters that are consulted each time the software is started.
- Step 3: After modifying these parameters, the software version will be locked/disabled, preventing the user from accessing that version.
- Step 4: Once locked/disabled, Spika staff will verify that the user is unable to use the software version by running access tests, thus concluding the remote software locking process.

5.6. Withdrawal/disqualification report and its effectiveness

Together with the documentation generated by the claim, a report must be generated where all the traceability of the recovered/disabled units is recorded.

This report should include as a minimum:

- Number of units distributed (if it is a physical product) or versions affected (if it is a software product)
- Number of affected units (if a physical product) or affected version (if a software product)
- Number of units recovered/versions disabled, in case of discrepancy with the total amounts should be explained and risk assessed.
- Final risk of withdrawal/disqualification
- Total customers
- Clients contacted
- Batch/version no.
- Producto afectado

The report should include a conclusion as to whether the recall/disablement has been deemed effective or not. In addition to the final reconciliation of units/versions, it should be assessed whether all customers could be contacted to be informed and that adequate measures have been taken to proceed with the recall/disablement.

5.7. Simulation

If no withdrawal/disqualification has taken place in the course of a calendar year, a simulation will be carried out by SPIKA staff in order to test the effectiveness of the implementation of this procedure and the methods of communication with customers.

6. Distribution of the Procedure

Staff belonging to the departments listed in Section 3 (Responsibilities and Departments concerned) should be provided with a copy of this procedure. In addition, controlled copy no. 1 will be given to the Archives for archiving on paper.

Controlled copies to be issued:

No. Controlled copy	Departments
1	Archive

7. Related documentation

Code	TITLE
N/A	Regulation (EU) 2017/745 of the European Parliament and of the Council on medical devices, amending Directive 2001/83/EC, Regulation (EC) No 178/2002 and Regulation (EC) No 178/2002
N/A	Regulation (EC) No 1223/2009 and repealing Council Directives 90/385/EEC and 93/42/EEC
MQ-01	Quality Manual
PNT-006	Complaints Management

8. Training

This version requires the following training for the departments concerned as indicated in paragraph 3:

Mark with an X	Type of training
☒	Theoretical (reading and understanding of the procedure)
☐	Theoretical - Practical (In case of selecting this option, please contact the Responsible Technician)